

See also: The Ten Commandments and Mosaic law 20–23 ■ Aristotle and natural law 32–33 ■ The origins of canon law 42–47 ■ Gratian's *Decretum* 60–63

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Reason in man is
rather like God in
the world.

Thomas Aquinas

Summa Theologica, 1265–1274

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accordance with nature, made this possible. By the early Middle Ages, Christian writers such as St. Augustine had developed this idea further to conclude that laws contrary to natural law were unjust and might not need to be obeyed.

In the 13th century, these strands were gathered together and refined by Aquinas, whose *Summa Theologica* (*Theological Treatise*) included a key section on natural law. He distinguished between four types of law. Eternal law transcends everything and touches upon God's divine plan and order for the universe, while divine law concerns creation and the path to salvation. Natural law is the link between mankind and God, made possible by humanity's ability to reason and perceive good.

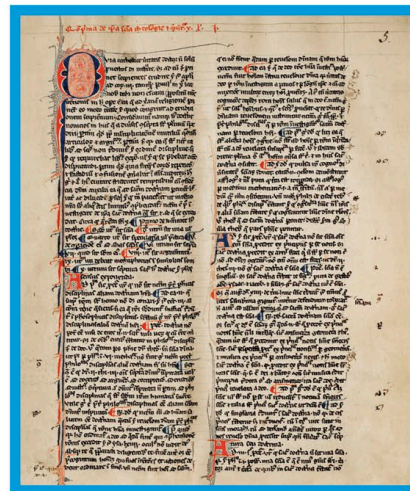
At the bottom of Aquinas's hierarchy of laws is human law, which is created according to particular circumstances and

can, unlike natural law, easily be modified. Even this, according to Aquinas, should conform to the dictates of natural law—and if it does not, it may be deemed unjust.

Natural law and justice

Aquinas believed that both natural law and human law aimed at the common good, but sometimes this produced surprising—and to modern eyes unfounded—results. He deemed slavery, for example, to be in accordance with natural law, supporting a divinely ordained social hierarchy. However, he thought it legitimate to conform to the spirit rather than the letter of natural law if this prevented a greater evil.

Aquinas's ideas of natural law remained influential after his death, providing defenses of the right to overthrow tyrants and for theories of a “just war.” They flowered anew in the 20th century with the notion of universal norms contained in the Universal Declaration of Human Rights. And they continue into the 21st century with appeals to “natural justice” as a means to oppose unjust government laws. ■



In his *Summa Theologica*, a page of which is shown here in a 13th-century decorated manuscript, Thomas Aquinas cites Christian, Muslim, Hebrew, and pagan sources.



Thomas Aquinas

The Catholic Church's most influential medieval theologian, Aquinas was born in Fossanova between Naples and Rome, in c. 1225, to a family of minor nobility. Against their wishes, he became a Dominican friar at age 20. Studying in Paris under theologian Albertus Magnus, he rapidly rose to prominence and was appointed regent master of theology there in 1265.

In 1265, Aquinas was summoned to serve as papal theologian, establishing a Dominican training school at Santa Sabina in Rome, where he began to compose the *Summa Theologica* as a manual for students. He was called back to Paris in 1268, but in 1272, he returned to Italy to found his own school in Naples. There he had an ecstatic vision, which caused him to cease writing, leaving the *Summa* unfinished at the time of his death in 1274.

Key work

1265–1274 *Summa Theologica* (*Theological Treatise*)